

WAIVER OF SUBROGATION RIGHTS & CONSENT TO SETTLE
(UNDERINSURED MOTORIST CLAIM)

TO: _____ (UM/UIM Carrier Name)

FROM: _____ (Insured/Claimant Name)

DATE: _____

RE: Claim Number: _____ | Policy Number: _____

1. NOTICE OF TENDER: Please be advised that the Adverse Party/Tortfeasor, _____, and their insurer, _____, have offered their full policy limits of \$_____ to the Insured in exchange for a full Release of Liability.

2. REQUEST FOR CONSENT: Pursuant to the terms of the Underinsured Motorist (UIM) coverage provided under the above-referenced policy, the Insured hereby requests written consent from _____ (UM Carrier) to accept the underlying policy limit settlement.

3. WAIVER OF SUBROGATION: By signing this document and/or providing written consent to the underlying settlement, the UM Carrier hereby **WAIVES AND RELINQUISHES** any and all rights of subrogation against the Tortfeasor. The UM Carrier agrees not to pursue a claim against the Tortfeasor personally to recover any UIM benefits paid to the Insured.

4. RESERVATION OF UIM CLAIM: The Insured specifically reserves the right to pursue an Underinsured Motorist (UIM) claim against their own policy for damages in excess of the underlying settlement, up to the limits of the applicable UIM coverage.

5. ACKNOWLEDGMENT OF RECEIPT: (To be completed by UM Carrier Agent)

I, _____, as an authorized representative of _____, hereby acknowledge receipt of this notice and grant consent to the underlying settlement, waiving all subrogation rights against the Tortfeasor.

AUTHORIZED CARRIER REPRESENTATIVE

Date: _____

INSURED'S ACKNOWLEDGMENT:

The undersigned Insured understands that settling with the Tortfeasor without the written consent of their UM carrier may jeopardize their right to collect UIM benefits.

INSURED SIGNATURE